

I. Request

1. The Institute of Registries and Notaries, I.P. (IRN) has requested the National Data Protection Commission (CNPd) to issue an opinion on a protocol aimed at regulating the access of SEMOVEPARK VISEU ESTACIONAMENTOS, S.A. to the information contained in the vehicle registration database.

2. The request is made under paragraph d) of no. 2 of article 27-D, and no. 2, 3, and 7 of article 27-E of Decree-Law no. 54/75, of February 12, which defines the Automobile Registration Regime.

3. The parties to the protocol are the IRN, the Institute for Financial Management and Justice Equipment, I.P. (IGFEJ), and SEMOVEPARK VISEU ESTACIONAMENTOS, S.A.

4. Under Clause 1 of the Protocol, SEMOVEPARK VISEU ESTACIONAMENTOS, S.A. is authorized to access vehicle registration information through online consultation of the respective database, located at IGFEJ, for the exclusive purpose of pursuing the competence legally delegated for the management, operation, and supervision of on-street parking in the area of the aforementioned Municipality by virtue of the contract signed on January 30, 2019, between the Company and the Municipality, with Concession, Construction, Operation, Management, Maintenance, and Supervision, under the Public Works and Public Service Concession Regime for Current and Future Parking Lots and Paid Parking Spaces on Public Roads in the City of Viseu. The National Road Safety Authority has equated the workers of SEMOVEPARK VISEU - ESTACIONAMENTOS, S.A. to administrative authority agents for the purpose of supervising parking subject to fee payment on roads under the jurisdiction of the Municipality of Viseu, in public areas and on roads granted to that company, duly delimited and signposted, exclusively for the application of the infractions provided for in article 71 of the Highway Code, under the combined provisions of articles 2 and 11 of Decree-Law no. 146/2014, of October 9, and paragraph d) of no. 3 of article 5 of Decree-Law no. 44/2005, of February 23.

5. The following data is accessed: "name, habitual residence, number and date of identification document, and tax identification number, when available, or company name, headquarters, and corporate number, of the owner or tenant or usufructuary, as well as encumbrances and charges" (no. 1 of Clause 1).

1 As amended by Decree-Law no. 182/2002, of August 20.

6. Access to the database is made through vehicle registration number search and is conditioned upon the mandatory identification of the process number or the report to which they refer, without which the searches cannot proceed (cf. no. 1 of Clause 2). For auditing purposes, accesses are recorded for a period of two years, in accordance with the provisions of no. 2 of Clause 2 of the protocol.

7. Under Clause 3 of the Protocol, SEMOVEPARK VISEU ESTACIONAMENTOS, S.A. must observe the legal provisions in force regarding the protection of personal data as set out in Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data, which repeals Directive 95/46/EC (General Data Protection Regulation) and Law no. 58/2019, of August 8, particularly regarding respecting the purpose for which the consultation was authorized, which must be limited to what is strictly necessary, not using the information for other purposes; not transmitting the information to third parties; and taking the necessary security measures to ensure the integrity and proper functioning of the database. Any form of interconnection of personal data is also prohibited.

8. It is also provided in the same clause that, should SEMOVEPARK VISEU ESTACIONAMENTOS, S.A. engage a subcontractor to execute the protocol, it shall be bound, in particular, to ensure the security of the processing, to ensure that the individuals involved undertake a confidentiality commitment, and to inform the IRN of all necessary information to demonstrate compliance with the

obligations set forth in the GDPR, including facilitating and contributing to audits or inspections conducted by the IRN or by another auditor mandated by it.

9. Access to the information of the Vehicle Registration is processed through dedicated infrastructure between IGFEJ, IP, and SEMOVEPARK VISEU ESTACIONAMENTOS, S.A., or through an IP/MPSL circuit to be interconnected with the infrastructure of the Ministry of Justice, with the implementation of IPsec tunnels to ensure data confidentiality.

10. In the context of access to the database via web services, IGFEJ, IP will assign an application user and respective password to SEMOVEPARK VISEU ESTACIONAMENTOS S.A. for access to the available web services.

11. Each access to the Webservice must contain the identification (user name and name) of the individual user triggering the invocation.

12. Under paragraph c) of no. 1 of Clause 5, each invocation made is recorded in the audit system for a minimum period of two years.

PAR/2023/97

2

13. IGFEJ, I.P., shall also register all communications made within the scope of this protocol, in accordance with its auditing policy.

14. SEMOVEPARK VISEU ESTACIONAMENTOS, S.A., indicates the end users to IRN, IP, pursuant to Article 27-H, No. 4, of Decree-Law No. 54/75, of February 12, as currently in force.

15. The protocol is established for a period of one (1) year, tacitly renewable for equal periods.

II. Assessment

16. SEMOVEPARK VISEU ESTACIONAMENTOS, S.A. has delegated powers regarding the management, operation, and supervision of surface parking in the Municipality of Viseu, with the National Road Safety Authority having equipped its workers as administrative authority agents for the purpose of supervising parking subject to fee payment on roads under the jurisdiction of the Municipality of Viseu, in public areas and on roads concessioned to that company, duly delimited and signposted, exclusively for the application of the infractions provided for in Article 71 of the Highway Code, under the combined provisions of Articles 2 and 11 of Decree-Law No. 146/2014, of October 9, and paragraph d) of No. 3 of Article 5 of Decree-Law No. 44/2005, of February 23.

17. According to paragraph d) of No. 2 of Article 27-D of the regime concerning Vehicle Registration, personal data regarding the legal status of any motor vehicle contained in the database may be communicated to SEMOVEPARK VISEU ESTACIONAMENTOS, S.A., via a data transmission line, and consultation via a data transmission line may also be authorized, ensuring compliance with information security standards and technical availability (cf. No. 2 of Article 27-E). The communication and consultation are conditioned upon the establishment of a protocol with IRN, I.P., which defines, in light of the legal or statutory attributions of the interested entities, the limits and conditions of the communications and consultation - cf. No. 3.

18. Thus, there is a legitimate basis for this processing of personal data, in terms of access, under paragraph e) of No. 1 of Article 6 of the GDPR.

19. Regarding the security measures related to data transmission, without prejudice to the need for continuous verification of their compliance, they appear to be appropriate.

20. It is noted, however, that the protocol is silent on the method of assigning access passwords to individual users, and it is recommended that this be expressly provided for in the text.

21. It should be noted that although the protocol states that SEMOVEPARK VISEU ESTACIONAMENTOS, S.A., indicates the end users to IRN, IP, the personal identification data of those users are not listed.